

IT IS FURTHER ORDERED that an Established Custodial Environment exists with both parties, therefore the burden of proof in this case is the clear and convincing evidence standard.

IT IS FURTHER ORDERED that the Court has evaluated the Best Interest Factors and finds the following:

- a. The love, affection, and other emotional ties existing between the parties involved and the child.**

The Court finds that both parents have a strong bond with the minor child. This Factor is equal between the parties.

- b. The capacity and disposition of the parties involved to give the child love, affection, guidance, and continuation of the education and raising of the child in his or her religion or creed, if any.**

The Court finds that neither has a religious affiliation. The Court finds that although the child has a bond with both parties, the concern is the capacity and disposition to give the child love, affection, and guidance. Plaintiff's/Father's capacity and disposition present as an issue for the Court. However, the Court finds that both parties are capable of providing the minor child with love, affection, and guidance. This Factor is equal between the parties.

- c. The capacity and disposition of the parties involved to provide the child with food, clothing, medical care or other remedial care recognized and permitted under the laws of this state in place of medical care, and other material needs.**

The Court finds that Plaintiff/Father is currently self-employed and was recently terminated by employer, IndiGrow. Defendant/Mother has worked for Kent County Prosecutor's Office for nine (9) years with multiple promotions during that time. Defendant/Mother has always provided the minor child with health insurance and just